

Akhilak Ahmad @ Sundar v. State of U.P.

Allahabad High Court · Division Bench · 8 February 2018 · Writ-C No. 5272 of 2018 · Writ-C No. 5272 of 2018 · **Writ allowed; recovery citation quashed; fresh provisional assessment directed.**

HEADNOTE

Recovery of Rs.7.32 lakh on a theft-of-electricity allegation was quashed because the provisional assessment notice dated 7 September 2016 indicated no date for hearing. Clause 6.8(b) of the U.P. Electricity Supply Code, 2005 requires adequate opportunity; a notice without a hearing date is not in accordance with law. The licensee must issue a fresh provisional assessment, serve it, and pass a reasoned final assessment after considering the consumer's objection, following *Ashok Kumar v. State of U.P.*

FACTUAL SUMMARY

Akhilak Ahmad challenged recovery of Rs.7,32,296 initiated against him on allegations of theft of electricity. He contended that neither a provisional assessment nor a final bill had been raised, that recovery was started directly, and that the assessment notice had not been served, so he could not object. Counsel for the corporation produced a provisional assessment order dated 7 September 2016. On perusal the High Court found that the notice indicated no date for hearing the consumer.

REUSABLE CONSTRUCTIONS

1. A provisional assessment notice that does not indicate a date for hearing fails to afford the opportunity required by clause 6.8(b) of the U.P. Electricity Supply Code, 2005. ¶ 6-8
2. Where the provisional assessment is not in accordance with law, the recovery citation is liable to be quashed and the licensee directed to issue a fresh provisional assessment, consider the consumer's objection, and pass a reasoned final assessment. ¶ 9

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8(b)

provisional assessment notice must indicate a hearing date

HOLDING

A provisional assessment notice in a theft-of-electricity matter that does not indicate a date for hearing does not afford the opportunity required by clause 6.8(b) of the U.P. Electricity Supply Code, 2005. The recovery citation is quashed. The licensee must prepare and serve a fresh provisional assessment; the final assessment shall be made after considering the consumer's objection, with reasons meeting the objection, in the light of *Ashok Kumar v. State of U.P.* ¶ 6-9

FLAG Court applied clause 6.8(b) to a theft assessment; clauses 8.1–8.2 ordinarily govern theft (s.135) assessment.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER COMMITTED THEFT OF ELECTRICITY, AND THE QUANTUM OF ASSESSMENT

left to a fresh provisional assessment, objection, and reasoned final assessment ¶ 9

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Ashok Kumar v. State of U.P.</i> 2008 (6) ADJ (DB)			7-9	Referred

